

25STLC05445 25STLC05445

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC05445 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Westlake Services, LLC dba Westlake Financial

Services' (1) Motion to Compel Responses to Plaintiff's Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things; Request for Monetary Sanctions; and (2) Motion to Compel Responses to Plaintiff's Second Set of Special Interrogatories; Request for Monetary Sanctions, are granted in part and denied in part.

Defendant Shawn Fortune aka Shawn Michael Fortune is to serve verified responses without objections to the discovery within 20 days' notice of this order. Plaintiff's request for sanctions, however, is denied.

Analysis:

On July 15, 2025, Plaintiff Westlake Services, LLC dba Westlake Financial Services ("Plaintiff") filed the instant action for breach of contract and common counts against Defendants Shawn Fortune aka Shawn Michael Fortune ("Defendant Fortune") and Certified Cars of Huntington LLC aka Certified Cars of Huntington ("Defendant Certified Cars"). Defendant Fortune filed a General Denial to the Complaint on October 1, 2025. On June 2, 2026, the Court granted Plaintiff's (1) Motion to Compel Responses to Special Interrogatories, Set One, and Request for Monetary Sanctions; and (2) Motion to Compel Responses to Demand for Production of Documents, Set One; and Request for Monetary Sanctions. (Minute Order, 06/02/26.)

On July 23, 2026, Plaintiff filed the instant (1) Motion to Compel Responses to Plaintiff's Demand for Identification, Production,

Inspection and Copying of Documents and Other Tangible Things; Request for Monetary Sanctions; (2) Motion to Compel Responses to Plaintiff's Second Set of Special Interrogatories; Request for Monetary Sanctions; and (3) Motion for Order that Matters be Deemed Admitted; Request for Monetary Sanctions. The Motions were served on Defendant Fortune the same day by electronic and first-class mail. The Court granted Plaintiff's ex parte application to advance the hearing dates to September 14 and 15, 2026. (Minute Order, 08/04/26.) Plaintiff filed notice of the new hearing dates and proof of service of the same on August 4, 2026. No opposition to the Motions has been filed to date.

Discussion

Plaintiff moves for an order compelling Defendant Fortune's initial responses to Special Interrogatories, Set Two, and Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things, Set Two, pursuant to Code of Civil Procedure sections 2030.290 and 2031.300. Plaintiff propounded Special Interrogatories, Set Two, and Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things, Set Two, on Defendant Fortune on June 3, 2026. (Motions, Brown Decl., Exh. 1.) Despite a meet and confer effort, Defendant Fortune did not serve responses. (Id. at ¶¶4-5 and Exh. 2.)

Based on Defendant Fortune's failure to serve initial responses to the discovery, the Motions to compel responses to the interrogatories and demands are granted. (Code Civ. Proc., §§ 2030.290, 2031.300.) The moving party is not required to meet and confer prior meet and confer to bringing a motion to compel initial responses. (Code Civ. Proc., §§ 2030.290, 2031.300.) Furthermore, the motions can be brought at any time after the responding party fails to respond. (Code Civ. Proc., §§ 2030.290, 2031.300.) Therefore, Plaintiff is entitled to an order compelling Defendant Fortune to serve verified responses to the interrogatories and demands, without objections.

Plaintiff also asks the Court to impose monetary sanctions pursuant to Code of Civil Procedure sections 2023.010 and 2023.030. In *City of Los Angeles v. Pricewaterhousecoopers, LLP* (2024) 17 Cal.5th 46, the Supreme Court observed:

It is already well-established that a court may not rely on [Code of Civil

Procedure] section 2023.030 to override the limitations prescribed by any other applicable sanctions provision in the [Civil Discovery] Act. A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision. And where it invokes that authority, it is constrained by the long-settled rules generally governing the imposition of discovery sanctions under the Act.

(City of Los

Angeles v. Pricewaterhousecoopers, LLP (2024) 17 Cal.5th 46, 74-75.) Code of Civil Procedure sections 2030.290 and 2031.300 limit the court's authority to impose sanctions when (as here) the non-moving party does not oppose a successful motion to compel responses to interrogatories and requests for production. Defendant Fortune filed no opposition, and Plaintiff has not shown that his failure to serve discovery responses is "an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." Therefore, the request for sanctions is denied.

Conclusion

Plaintiff Westlake Services, LLC dba Westlake Financial Services' (1) Motion to Compel Responses to Plaintiff's Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things; Request for Monetary Sanctions; and (2) Motion to Compel Responses to Plaintiff's Second Set of Special Interrogatories; Request for Monetary Sanctions, are granted in part and denied in part.

Defendant Shawn Fortune aka Shawn Michael Fortune is to serve verified responses without objections to the discovery within 20 days' notice of this order. Plaintiff's request for sanctions, however, is denied.

Moving party to give notice.